

STATE OF NEW YORK

8337--A

2025-2026 Regular Sessions

IN SENATE

June 3, 2025

Introduced by Sens. COMRIE, JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Labor in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to wage requirements for certain support professionals

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The labor law is amended by adding a new section 224-g to
2 read as follows:

3 § 224-g. Wage requirements for certain support professionals. 1.
4 Definitions. For the purposes of this section, the following terms shall
5 have the following meanings:

6 (a) "Human services worker" shall mean any employee that either
7 provides direct care, support, or treatment to an individual participat-
8 ing in an eligible program and services as defined in this section or
9 any employee who may not provide direct care to an individual but whose
10 job title goals are to help improve or enhance an individual's health
11 and/or welfare by addressing social problems and/or enhancing well-being
12 who are not making the base wage as established in this section. Such
13 definition shall not include executive professionals.

14 (b) "Eligible program" means any direct state or pass through funded
15 program or service that is provided to individuals or groups of individ-
16 uals, for the purpose of improving or enhancing such individuals' health
17 and/or welfare, by addressing social problems and/or enhancing well-be-
18 ing that are funded, licensed, or certified by the offices, if such
19 program or service is provided to individuals or groups of individuals,
20 for the purpose of improving or enhancing such individuals' health
21 and/or welfare, by addressing social problems. This section shall apply
22 to existing and any new programs or services.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (c) "Downstate region" means the region consisting of Bronx, Kings,
2 New York, Nassau, Queens, Richmond, Suffolk, and Westchester counties.

3 (d) "Rest of the state" means all other counties of the state not
4 included in downstate region.

5 (e) "Offices" means the office of mental health, office for people
6 with developmental disabilities, office of addiction services and
7 supports, office of temporary and disability assistance, office of chil-
8 dren and family services, the state office for the aging, the department
9 of education, the department of health, the office of victim services,
10 and any other state agency that may have eligible programs, if such
11 program or service is provided to individuals or groups of individuals,
12 for the purpose of improving or enhancing such individuals' health
13 and/or welfare, by addressing social problems.

14 (f) "Social services district" shall have the same meaning as defined
15 by section two of the social services law.

16 2. Human services worker wages. (a) The provisions of this paragraph
17 shall apply to the downstate region. Beginning April two thousand twen-
18 ty-six, for the downstate region, and pending federal approval where
19 necessary, the commissioners or other chief officers of the offices
20 shall provide sufficient direct state or pass through funding for any
21 contracts and/or agreements between such offices and not-for-profit
22 organizations and any eligible programs funded by allocations or
23 reimbursements from such offices to social services districts to provide
24 a base wage to human services workers employed in eligible programs, and
25 to human services workers employed by any contractors or subcontractors
26 working in any eligible program, to ensure such human services workers
27 are paid a base wage. Such base wage shall be twenty-nine dollars per
28 hour for the downstate region and shall be phased in subject to the
29 following schedule:

30 (i) beginning April first, two thousand twenty-six, the base wage
31 shall be twenty dollars per hour;

32 (ii) beginning April first, two thousand twenty-seven, the base wage
33 shall be twenty-four dollars per hour;

34 (iii) beginning April first, two thousand twenty-eight, the base wage
35 shall be twenty-six dollars per hour; and

36 (iv) beginning April first, two thousand twenty-nine, the base wage
37 shall be twenty-nine dollars per hour or four hundred percent of the
38 federal poverty level, whichever is greater.

39 (b) The provisions of this paragraph shall apply to the rest of the
40 state. Beginning April first, two thousand twenty-six, and pending
41 federal approval where necessary, the commissioners or other chief offi-
42 cers of the offices, shall provide sufficient direct state or pass
43 through funding for any contracts and/or agreements between such offices
44 and not-for-profit organizations and any eligible programs funded by
45 allocations or reimbursements from such offices to social services
46 districts to provide a base wage to human services workers employed in
47 eligible programs, and to human services workers employed by any
48 contractors or subcontractors working in any eligible program, to ensure
49 such human services workers are paid a base wage. Such base wage shall
50 be twenty-nine dollars per hour for the rest of the state and shall be
51 phased in subject to the following schedule:

52 (i) beginning April first, two thousand twenty-six, the base wage
53 shall be nineteen dollars per hour;

54 (ii) beginning April first, two thousand twenty-seven, the base wage
55 shall be twenty-one dollars per hour;

1 (iii) beginning April first, two thousand twenty-eight, the base wage
2 shall be twenty-three dollars per hour;

3 (iv) beginning April first, two thousand twenty-nine, the base wage
4 shall be twenty-six dollars per hour; and

5 (v) beginning April first, two thousand thirty, the base wage shall be
6 twenty-nine dollars per hour or four hundred percent of the federal
7 poverty level, whichever is greater.

8 (c) Annual human services worker base wage increase. (i) The
9 provisions of this subparagraph shall apply to the downstate region. On
10 and after April first, two thousand thirty, the base wage rate applied
11 under paragraph (a) of this subdivision shall be adjusted annually by
12 the offices. Such adjusted base wage rate shall be determined by
13 increasing the then current year's base wage rate by the rate of change
14 in the average of the three most recent consecutive twelve-month periods
15 between the first of August and the thirty-first of July, each over
16 their preceding twelve-month periods published by the United States
17 department of labor non-seasonally adjusted consumer price index for
18 northeast region urban wage earners and clerical workers (CPI-W) or any
19 successor index as calculated by the United States department of labor,
20 with the result rounded to the nearest five cents.

21 (ii) The provisions of this subparagraph shall apply to the rest of
22 the state. On and after April first, two thousand thirty-one, the base
23 wage rate applied under paragraph (b) of this subdivision shall be
24 adjusted annually by the offices. Such adjusted base wage rate shall be
25 determined by increasing the then current year's base wage rate by the
26 rate of change in the average of the three most recent consecutive
27 twelve-month periods between the first of August and the thirty-first of
28 July, each over their preceding twelve-month periods published by the
29 United States department of labor non-seasonally adjusted consumer price
30 index for northeast region urban wage earners and clerical workers
31 (CPI-W) or any successor index as calculated by the United States
32 department of labor, with the result rounded to the nearest five cents.

33 3. Eligible employee list. The commissioners or other chief officers
34 of the offices shall develop forms and processes for eligible not-for-
35 profits under this section to identify and report the titles and number
36 of eligible employees covered by this section.

37 4. Allocations. The commissioners or other chief officers of the
38 offices shall distribute an allocation to each eligible provider based
39 on the forms developed pursuant to subdivision three of this section.
40 The funds distributed pursuant to this section shall be used to enhance
41 base wages of eligible employees.

42 5. Reimbursement. Where appropriate, transfers to the department of
43 health shall be made as reimbursement for the state share of medical
44 assistance.

45 6. In both the downstate region and the rest of the state, in order to
46 ensure such human services workers are paid a base wage as provided for
47 in this section, the commissioners or other chief officers of the
48 offices covered by this section shall provide direct state or pass
49 through funding and shall not require any local social services district
50 to provide matching funds or to assume responsibility for any other cost
51 shifts to local social services districts to pay the base wage.

52 § 2. This act shall take effect immediately.